

Case number:
Preceding case number:
NAIH-127-5/2023
NAIH-4319/2022
Subject: Decision

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) against Péter Márki-Zay (contact information provided on Facebook: 6800 Hódmezővásárhely, Kossuth tér 1.; legal representative: attorney; hereinafter: Respondent) based on the request submitted by (contact information provided: client portal; hereinafter: Applicant) on March 31, 2022, initiated a data protection authority procedure regarding the unlawful processing of the Applicant's personal data through the Facebook account at <https://www.facebook.com/markizaypeter> and the associated Facebook Messenger account (hereinafter: Facebook page). In the above data protection authority procedure, the Authority, by its decision NAIH-4319-13/2022 dated September 12, 2022, included the Everyone's Hungary Movement (headquarters: 1137 Budapest, Szent István körút 16. 4th floor/21.; legal representative: attorney; hereinafter: Obligor) as a party. The Authority makes the following decisions in the above data protection authority procedure:

I. The Authority establishes at the request of the Applicant that the Respondent and the Obligor violated Article 12(1) and Article 14(1) and (2) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) concerning the processing of personal data related to Facebook Messenger messages sent to the Applicant on March 10, 2022, as well as Article 6(1) and Article 21(1) of the General Data Protection Regulation in connection with the sending of a second Facebook Messenger message requesting subscription, disregarding the right to object, without a valid legal basis following the initial subscription request message.

II. The Authority ex officio establishes that the Respondent and the Obligor violated during the period between February 2022 and April 2022 in connection with the data processing practice related to Facebook Messenger

(i) Article 12(1), Article 14(1) and (2), and Article 26(1) and (2) of the General Data Protection Regulation by failing to provide adequate information on data processing regarding the first subscription request messages sent to commenting, not yet subscribed data subjects on the Facebook page, particularly regarding the written identification of the roles of multiple data controllers involved in the data processing and the communication of this to the data subjects,

(ii) Article 6(1) and Article 21(1) of the General Data Protection Regulation by setting up data processing settings to send repeated subscription request messages to commenting, not yet subscribed, and previously rejected subscription data subjects, as well as to unsubscribed data subjects,

(iii) Article 12(1) and Article 13(1) and (2), and Article 26(1) and (2) of the General Data Protection Regulation by failing to provide adequate and prior information about the data processing to the data subjects who consented to the subscription.

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with particular regard, but not limited to, the written identification of the roles of multiple data controllers involved in data processing and the communication of this to the data subjects.

III. The Authority rejects the Applicant's request for a temporary measure.

IV. The Authority, pursuant to Article 58(2)(d) of the General Data Protection Regulation, orders the Respondent and the Obligor to act in accordance with the General Data Protection Regulation in their future data processing activities, as detailed in the reasoning.

V. Due to the above-mentioned data protection violations, the Authority warns the Respondent ex

officio under Section 75/A of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.).

VI. Due to the established data protection violations, the Authority imposes an administrative fine of 3,000,000 HUF, that is, three million forints on the Obligor.

The fine referred to in point V above must be paid by the Obligor within 30 days from the date this decision becomes final to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000). When transferring the amount, reference must be made to "NAIH-127/2023 FINE."

If the Obligor fails to comply with the payment obligation by the deadline, they are required to pay a late fee. The amount of the late fee is the statutory interest, which corresponds to the central bank base rate valid on the first day of the calendar half-year affected by the delay.

In the event of non-payment of the fine and the late fee, the Authority will order the enforcement of the decision.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not entitled to full personal exemption from fees, the court review procedure fee is 30,000 HUF, and the case is subject to the payment of court fees. Legal representation is mandatory in proceedings before the Metropolitan Court.

Pursuant to Section 61(2)(a) of the Infotv., the Authority will publish this decision on its website, anonymizing the identifying data of the Applicant, while including the identifying data of the Respondent and the Obligor.

REASONING

1. The procedure and clarification of the facts

1. The procedure

(1) The Applicant submitted a request on March 31, 2022, via ePaper, stating that on March 10, 2022, they commented on the Respondent's Facebook page, as a result of which they received an automated message via Facebook Messenger in the name of the Respondent without any data processing information. According to the attached screenshot, the content of the message was as follows: "Péter Márki-Zay: Dear Fellow Citizen! Thank you for commenting on my page. Would you like to stay in touch and learn about the events of my campaign firsthand?"

(2) The Applicant replied "No" to the above message. In response, they received the following automated reply message in the name of the Respondent: "Alright. Then I will not contact you via Messenger."

(3) The Applicant subsequently commented again on the Facebook page, to which they again received an automated question via Messenger regarding the subscription request after the first comment.

(4) The Applicant requested the Authority to establish the unlawful processing of their Facebook identifier in the context of a data protection authority procedure and requested a temporary measure to prohibit the data controller of the Facebook page from committing further violations through the Facebook page during the procedure.

(5) In response to the Authority's request for supplementation, the Applicant, in a letter sent on April 6, 2022, indicated their own Facebook profile identifier, stated that they use it solely for private purposes, and attached the screenshot of the contested message exchange, which also shows the message exchange in the browser.

(6) On April 5, 2022, the Authority did not find any other data controller identified on the Facebook page besides the Respondent, and the only official contact listed was the postal address "6800 Hódmezővásárhely, Kossuth tér 1."

(7) In response to the Authority's inquiry sent on May 18, 2022, and a repeated inquiry sent on July 11, 2022, the Respondent's legal representative, following a request for an extension of the deadline approved by the Authority, stated on August 26, 2022, that regarding the Facebook page, Meta Platforms Ireland Limited (hereinafter: Meta Ireland), which operates the Facebook platform, and the Obligor are joint data controllers, and the Respondent, as a private individual, does not process data and has no information regarding the data processing of the Facebook page. Therefore, on September 12, 2022, the Authority included the Obligor in the procedure as a client with its decision numbered NAIH-4319-13/2022.

(8) In response to the Authority's inquiry, the Obligor, through its legal representative, provided the following answers via ePaper on September 27, 2022, and October 19, 2022:

(i) Meta Ireland and the Obligor are joint data controllers regarding the Facebook page.

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(ii)

On the Facebook page, Meta Ireland provides the following information for data subjects at the link: https://www.facebook.com/privacy/policy/?section_id=7-WhatIsOurLegal

(iii)

Regarding Facebook Messenger, Facebook provides the following information at the link <https://www.facebook.com/business/gdpr>: "The Messenger platform, which is part of Facebook, acts as a data controller in most cases, as conversations between people and businesses can be considered activities available on the platform. As a data controller, we process personal data in the manner described in the Data Processing Policy. It is important to know that under the GDPR, your business may also be considered a data controller even when Facebook is acting as a data controller."

(iv)

The purpose of the automated messages sent to the Applicant via Facebook Messenger is to inform the data subject about new content to be shared on the Facebook page automatically, thereby allowing the data controller's message to reach multiple data subjects.

(v)

The legal basis for data processing is the consent of the data subject. The data subject has the right to set who can send them messages regarding the messages received via Facebook Messenger. If the data subject allows it, anyone with a Facebook Messenger user account can send them a message; this is the default setting for all accounts after registration. This setting can be freely modified, restricted, or completely turned off. The withdrawal of consent can be done within their own Facebook account, under the "settings and privacy" menu, in the "Privacy" ("Privacy Settings and Tools") subsection, within the paragraph "How do your messaging permission requests arrive?" (last in line).

(vi)

According to the Obligor's position, it was due to a technical error on the Meta Ireland page that the Applicant received a repeated subscription request after initially responding negatively, as messaging to data subjects from the questioned page does not occur manually.

(vii)

The Applicant's case cannot be considered a general practice in any way. This function is a built-in feature of the Facebook Messenger platform, which is available to anyone. Only users who express their intention voluntarily to send a comment to the Facebook public page operated by the data controller will receive a message, and who also wished to interact with the relevant Facebook page. After any comment made on a post, a Facebook Messenger conversation is indeed automatically initiated; however, at this point, the user does not become a subscriber to the given Messenger channel, so after a simple comment, no data processing occurs on the part of the Obligor, and Facebook does not transfer personal data about the recipient of the automatic Facebook Messenger message to the Obligor or to the software used by the Obligor to operate the Messenger channel

through the relevant API.

(viii)

On the questioned Messenger channel, after the subscription, i.e., the second voluntary interaction, the user receives information about the privacy rules and how to unsubscribe automatically.

(ix)

If the data subject does not request another automatic message after the first one, they need to contact Meta Ireland, as the platform operator, in the manner specified in the Meta Ireland data processing notice.

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(x)

On the Messenger channel in question, after subscribing, i.e., after the second voluntary interaction, the user receives information about the data protection rules and how to unsubscribe automatically.

The data processing information is available at the following link:

<https://mindenkimagyarorszaga.hu/adatvedelmi-nyilatkozat/>

(xi)

In relation to the data processing subject to the procedure, the Obligor engages the data processor Datadat GmbH (Sommerhaidenweg 98, 1190 Vienna, Austria; hereinafter: Datadat GmbH).

(9)

In response to a further inquiry from the Authority, the Obligor provided the following answers via its legal representative on October 20, 2022, through ePapír:

(i)

It cannot state how many comments are received on the Facebook page from individuals who have not yet subscribed to the Facebook Messenger messages.

(ii)

The Facebook page has existed since 2017; the automatic Facebook Messenger message "triggering" subject to the procedure was activated by the Obligor in early February 2022 during the intensive phase of the 2022 election campaign, meaning that since then, those commenting on the Facebook page receive an automatic Facebook Messenger message requesting subscription.

(iii)

According to the Obligor, since this is a function of the Facebook API and the related PSID is not shared with the Obligor by the Facebook service, the Obligor does not process any data before a positive response indicating the intention to subscribe, thus it was not a data controller regarding the Applicant's Facebook Messenger messages, and could not have obtained the Applicant's identifying data either automatically or upon request.

(iv)

It attached screenshots of the "YES" branch, where the reference to the data protection information is only found in the confirmation message following the subscription. The negative branch does not store any data about the individual and cannot be retrieved by the administrators of the Facebook page.

(v)

Approximately 5,000 individuals subscribed to the automatic message effect on Facebook Messenger news. According to the Obligor, this was not a popular solution for visitors to the Facebook page.

(vi)

According to the attached annual financial report, the Obligor's total annual revenue was 142,738,000 HUF in 2021.

(vii)

The Obligor believes that it did not process the Applicant's personal data, and the repeated messaging is attributable to a technical error of Facebook.

(10)

On December 7, 2022, the Authority informed the Applicant about the progress of the procedure so far, based on Article 78(2) of the General Data Protection Regulation and Section 60/A(6) of the Infotv.

(11)

In response to another inquiry from the Authority, the Obligor provided the following answers via its legal representative on December 16, 2022, through ePapír:

(i)

It attached a screenshot containing the Facebook Messenger administrator settings, showing which text is displayed under which conditions in Facebook Messenger. These texts are typed in by the Obligor in the configuration interface for each

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steps. The data management information only appears after pressing the subscribe button, which order and text were set by the Obligor.

(ii)

Since the conclusion of the elections (April 2022), the function under investigation is no longer operational.

(iii)

The Obligor cannot state how many people have commented on the Facebook page since February 2022, as Facebook does not provide this information to them.

(iv)

There is an option to set a so-called "silence period" during which the commenter does not receive further inquiries via Facebook Messenger, but the Obligor decided that the period of March-April 2022 was of particular interest and commenting is not mandatory; it is a voluntary activity, therefore they did not activate this function, which would avoid repeated messaging in case of a negative response. The automatically triggered conversation is a Facebook feature that every Facebook user accepts by consenting to its use. Without subscription, no data retention occurs on the Obligor's side regarding the Facebook Messenger message.

(v)

A single objection from the Applicant was not sufficient to prevent repeated inquiries due to the above settings.

(vi)

In addition to the settings, during the given period, an identical message is sent for every comment; there is no option to set different text after the first message. There was an option to set a "silence period," however, the Obligor believed that their legitimate interest during the given election period was to collect as many voluntary subscribers as possible, who express their communication intent with the data controller themselves. The Obligor does not receive any identifying data from those who do not indicate their intention to subscribe. For those who successfully subscribe, this message does not trigger again until they unsubscribe.

(12) On January 5, 2023, the Authority informed the Applicant, the Respondent, and the Obligor in accordance with Section 76 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) that it concludes the evidence gathering and what their rights regarding document inspection and statement-making are in this regard. The Authority's decision NAIH-127-1/2023 regarding this was received electronically by both the Applicant and the Respondent and the Obligor's legal representatives on January 5, 2023. The Authority established a 15-day deadline from the date of receipt of the decision for the request for document inspection and possible statement-making, and in the case of document inspection, an additional 15-day deadline for statement-making from the date of its completion.

(13) At the request of the Authority, the Applicant submitted a request for document inspection on January 5, 2023, requesting electronic copies, which the Authority fulfilled on January 10, 2023.

(14) Following the exercise of their right to inspect documents, on January 10, 2023, the Applicant made the following comments in response to the Authority's call under Section 76 of the Ákr.:

(i)

The Applicant has not encountered the mentioned function on any other Facebook page so far, despite the Obligor's statement that it is a feature of Facebook itself.

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(ii) By accepting the Facebook terms of use, the Applicant did not consent to the Respondent sending Facebook Messenger messages to them, as they believe that both the first and subsequent messages sent were unlawful.

(iii) The Facebook privacy settings referenced in the letter dated September 27, 2022, by the

Respondent specifically pertain to messages from other "people," not inquiries from organizations or political parties.

(iv) The Applicant disputes the assertion that the Respondent does not see the Facebook Messenger messages sent to them, as the Applicant can see these messages in their message stream.

(v) The Respondent, as the data controller, is also responsible for any potential technical errors that may occur during data processing, and furthermore, has not substantiated the referenced technical error in any way.

(vi) To date, the Applicant has not received any information regarding the Respondent's data processing.

(vii) The response sent by the Respondent on December 16, 2022, regarding the determination of the number of comments is incorrect, as based on the screenshot attached by the Applicant, it is possible for the Facebook page administrator to view the number of comments, export it in XLS format, and also aggregate comments given to specific articles.

(viii) There is a possibility that the Applicant is a joint data controller with the Respondent, as the data processing was conducted in the interest of the Respondent as a candidate for a political position.

(15) The Respondent and the Respondent did not make any further statements within the established deadline in response to the Authority's call under Section 76 of the Act.

2. Facts established by the Authority

(16) On March 10, 2022, the Applicant commented on a Facebook page operating under the name of the Respondent. As a result, they received a message via Facebook Messenger in which the Respondent requested them in the first person singular to subscribe for further news on Facebook Messenger. The Applicant responded negatively, to which they received an automated confirmation message stating that they would not be contacted again. Subsequently, on the same day, the Applicant commented again on the Facebook page, to which they again received an automated question via Messenger regarding the subscription request after the first comment.

(17) The name on the Facebook page is the natural person name of the Respondent, and they write posts on the Facebook page to promote their election as a candidate for a political position. The contact and identification data subpage of the Facebook page lists the address "Kossuth tér 1, Hódmezővásárhely, Hungary, 6800," and there are random character links pointing to the website <https://markizaypeter.hu>, as well as to the "markizaypetermzp" Twitch video-sharing website, and a Spotify page. The details subsection specifically provides options for contacting the Respondent: a Reddit forum link to the username "markizaypetermzp," an Apple Podcast link to the Respondent's name encoded in HTML (with HTML codes in place of accented characters), and a link to the <https://mindenkimagyarorszaga.hu/kapcsolat> website. Regarding the specific relationship between the Facebook page and the Respondent, there is a reference link without the above description.

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There is no reference or explanation found in the "About" section of the Facebook page, which serves to identify the page operator in general. Neither the data protection information available on the website <https://markizaypeter.hu> nor that on <https://mindenkimagyarorszaga.hu/> provides information regarding data processing related to automated contact via Facebook Messenger prior to obtaining consent, nor about this consent request form.

(18) The Facebook page only identifies the Applicant, and the Respondent is not found as the page operator. The same applies to the Facebook Messenger message sent to the Applicant, the sender being the Applicant. The data protection information referring to the Respondent was not received by the Applicant due to the negative response; it is only received by subscribers after subscribing.

(19) The Respondent has contracted with Datadat GmbH, which operates as a data processor for data processing via the Facebook page, and the Respondent has the information regarding the Facebook page and the associated Facebook Messenger account.

(20) The Respondent has set up on the interface provided by the Facebook service that there was no "silence period" between February and April 2022, meaning that in the case of a negative response following a comment, a new request message for the same subscription was automatically sent out without a grace period for new comments.

(21) According to the settings, the "silence period" also applies to those who have unsubscribed once, meaning that they will receive the subscription request message again upon the first comment after indicating their intention to unsubscribe.

II.

Applicable Legal Provisions

(22) According to the preamble (26) of the General Data Protection Regulation, the principles of data protection must be applied to any information relating to an identified or identifiable natural person. Pseudonymized personal data, which can be linked to a natural person using additional information, must be considered data relating to an identifiable natural person. In determining the identifiability of a natural person, all methods must be taken into account—including, for example, designation—that can reasonably be assumed to be used by the data controller or another person for the direct or indirect identification of the natural person. In determining which means can reasonably be assumed to be used for the identification of a specific natural person, all objective factors must be considered, including the costs and time required for identification, taking into account the technologies available at the time of data processing and the development of technology. Accordingly, the principles of data protection do not need to be applied to anonymous information, namely information that does not relate to an identified or identifiable natural person, as well as to personal data that has been anonymized in such a way that the data subject is no longer identifiable or cannot be identified. Therefore, the General Data Protection Regulation does not apply to the processing of such anonymous information, including data processing for statistical or research purposes.

(23) According to the preamble (74) of the General Data Protection Regulation, the powers and responsibilities of the data controller must be regulated concerning any type of processing of personal data carried out by the data controller or on behalf of the data controller. The data controller must be obliged, in particular, to take appropriate and effective measures.

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to carry out, as well as to be able to demonstrate that the data processing activities comply with the General Data Protection Regulation and that the effectiveness of the measures taken is at the level required by the General Data Protection Regulation. These measures must be taken considering the nature, scope, circumstances, and purposes of the data processing, as well as the risks to the rights and freedoms of natural persons.

(24) According to Article 2(1) of the General Data Protection Regulation, the General Data Protection Regulation applies to the processing of personal data that is carried out by automated means in whole or in part, as well as to the non-automated processing of data that forms part of a filing system or is intended to form part of a filing system.

(25) According to Article 4(1) of the General Data Protection Regulation, "personal data" means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, number, location data, online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(26) According to Article 4(2) of the General Data Protection Regulation, "processing" means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(27) According to Article 4(5) of the General Data Protection Regulation, "pseudonymization" means the processing of personal data in such a manner that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures to ensure that the personal data is not attributed to an identified or identifiable natural person.

(28) According to Article 4(7) of the General Data Protection Regulation, "data controller" means the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data. Where the purposes and

means of such processing are determined by Union or Member State law, the data controller or the specific criteria for the designation of the data controller may also be provided for by Union or Member State law.

(29) According to Article 4(11) of the General Data Protection Regulation, "the data subject's consent" means any freely given, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to them.

(30) According to Article 6(1) of the General Data Protection Regulation, the processing of personal data shall be lawful only if at least one of the following applies:

(i) the data subject has given consent to the processing of their personal data for one or more specific purposes;

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(ii) the data processing is necessary for the performance of a contract in which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract;

(iii) the data processing is necessary for compliance with a legal obligation to which the data controller is subject;

(iv) the data processing is necessary to protect the vital interests of the data subject or of another natural person;

(v) the data processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

(vi) the data processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.

(31) According to Article 9(1) of the General Data Protection Regulation, the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as genetic data, biometric data for the purpose of uniquely identifying a natural person, health data, and personal data concerning a natural person's sex life or sexual orientation is prohibited.

(32) According to Article 9(2)(a) of the General Data Protection Regulation, the prohibition in paragraph (1) shall not apply if the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union or Member State law provides that the prohibition referred to in paragraph (1) may not be lifted by the data subject's consent.

(33) According to Article 12(1) of the General Data Protection Regulation, the data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, and all information referred to in Articles 15 to 22 and 34 in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing children.

(34) According to Articles 13(1) and (2) of the General Data Protection Regulation, if the personal data are obtained from the data subject, the data controller shall provide the data subject with the following information:

(i) the identity and contact details of the data controller and, where applicable, of the data controller's representative;

(ii) the contact details of the data protection officer, where applicable;

(iii) the purposes of the intended processing and the legal basis for the processing;

(iv) in the case of processing based on Article 6(1)(f) of the General Data Protection Regulation, the legitimate interests pursued by the data controller or a third party;

(v) where applicable, the recipients of the personal data or categories of recipients, if any;

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(vi) where applicable, the fact that the data controller intends to transfer personal data to a third country or an international organization, and the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph

of Article 49(1) of the General Data Protection Regulation, the appropriate and suitable safeguards, as well as the means to obtain a copy of them or the reference to where they are made available;

(vii) the period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period;

(viii) the data subject's rights to request from the data controller access to, rectification of, erasure of, or restriction of processing of personal data concerning him or her, and to object to such processing, as well as the right to data portability;

(ix) in the case of processing based on Article 6(1)(a) or Article 9(2)(a) of the General Data Protection Regulation, the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

(x) the right to lodge a complaint with a supervisory authority;

(xi) whether the provision of personal data is a statutory or contractual requirement or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data, as well as the possible consequences of failing to provide such data;

(xii) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4) of the General Data Protection Regulation, and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

(35) According to Article 13(4) of the General Data Protection Regulation, the provisions of paragraphs (1) to (3) of Article 13 shall not apply to the extent that the data subject already has the information.

(36) According to Articles 14(1) and (2) of the General Data Protection Regulation, if the personal data have not been obtained from the data subject, the data controller shall provide the data subject with the following information:

(i) the identity and contact details of the data controller and, where applicable, of the data controller's representative;

(ii) the contact details of the data protection officer, where applicable;

(iii) the purposes of the intended processing and the legal basis for the processing;

(iv) the categories of personal data concerned;

(v) where applicable, the recipients of the personal data or categories of recipients, if any;

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(vi) in cases where the data controller intends to transfer personal data to a third country or an international organization, as well as the existence or absence of a decision of the Commission on adequacy, or in the case of data transfers mentioned in Article 46, Article 47, or the second subparagraph of Article 49(1) of the General Data Protection Regulation, the specification of appropriate and suitable safeguards, as well as references to the means of obtaining copies of those safeguards or their availability;

(vii) the duration of storage of personal data, or, if this is not possible, the criteria used to determine that duration;

(viii) if the processing is based on point (f) of Article 6(1), the legitimate interests of the data controller or a third party;

(ix) the right of the data subject to request access to their personal data from the data controller, to request rectification, erasure, or restriction of processing of their personal data, and to object to the processing of such personal data, as well as the right of the data subject to data portability;

(x) in the case of processing based on point (a) of Article 6(1) or point (a) of Article 9(2) of the General Data Protection Regulation, the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

(xi) the right to lodge a complaint with a supervisory authority;

(xii) the source of personal data and, where applicable, whether the data originates from publicly accessible sources; and

(xiii) the existence of automated decision-making, including profiling, as referred to in Articles 22(1) and (4) of the General Data Protection Regulation, as well as at least in these cases, understandable information on the logic involved and the significance of such processing, as well as the expected consequences for the data subject.

(37) According to Article 14(3) of the General Data Protection Regulation, the data controller shall provide the information referred to in paragraphs (1) and (2) as follows:

- (i) taking into account the specific circumstances of the processing of personal data, within a reasonable period from the acquisition of the personal data, but no later than one month;
- (ii) if the personal data are used for the purpose of contacting the data subject, at least at the time of the first contact with the data subject; or
- (iii) if the data are expected to be communicated to another recipient, no later than at the time of the first communication of the personal data.

(38) According to Article 14(5) of the General Data Protection Regulation, the provisions of Article 14(1)–(4) do not need to be applied if and to the extent that:

- (i) the data subject already has the information;

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- (ii) the provision of the information in question proves to be impossible or would require a disproportionate effort, particularly for the purposes of public interest archiving, scientific and historical research, or statistical purposes, taking into account the conditions and guarantees set out in Article 89(1), or if the obligation mentioned in paragraph (1) of this article would likely make it impossible or seriously jeopardize the achievement of the purposes of such data processing. In such cases, the data controller must take appropriate measures – including making the information publicly available – to protect the rights, freedoms, and legitimate interests of the data subjects;

- (iii) the acquisition or disclosure of the data is expressly required by EU or Member State law applicable to the data controller, which provides for appropriate measures to protect the legitimate interests of the data subjects; or

- (iv) the personal data must remain confidential based on a professional secrecy obligation prescribed by EU or Member State law, including a statutory confidentiality obligation.

(39) According to Article 21(1) of the General Data Protection Regulation, the data subject has the right to object at any time to the processing of their personal data based on points (e) or (f) of Article 6(1) for reasons related to their particular situation, including profiling based on those provisions. In this case, the data controller may not further process the personal data unless the data controller demonstrates that the processing is based on compelling legitimate grounds which override the interests, rights, and freedoms of the data subject, or is related to the establishment, exercise, or defense of legal claims.

(40) According to Article 26(1) of the General Data Protection Regulation, if the purposes and means of processing are jointly determined by two or more data controllers, they shall be considered joint controllers. The joint controllers shall transparently determine in their arrangement the allocation of responsibilities for compliance with the obligations under this Regulation, in particular regarding the exercise of the rights of the data subjects and the provision of information referred to in Articles 13 and 14, except to the extent and in so far as the allocation of liability among the data controllers is determined by the applicable EU or Member State law. The arrangement may designate a contact point for the data subjects.

(41) According to Article 26(2) of the General Data Protection Regulation, the arrangement referred to in paragraph (1) must reflect the role of the joint controllers in relation to the data subjects and their relationship with them. The essence of the arrangement must be made available to the data subjects.

(42) For data processing falling under the General Data Protection Regulation, the provisions of the General Data Protection Regulation shall be applied with the supplements specified in Section 2(2) of the Infotv.

(43) According to Section 60(1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio.

(44) According to Section 61(1)(a) of the Infotv., in its decision made in the data protection authority procedure, the Authority shall determine the data processing as defined in Section 2(2) of the Infotv.

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In connection with operations, the Authority may apply the legal consequences defined in the General Data Protection Regulation.

(45) According to Section 71 (2) of the Infotv., the Authority may use documents, data, or other evidence lawfully obtained during its proceedings in other proceedings.

(46) Based on Section 75/A of the Infotv., the Authority exercises its powers as set out in Articles 83 (2)–(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first-time violation of provisions regarding the processing of personal data—defined in legislation or in mandatory legal acts of the European Union—primarily by warning the data controller or processor in accordance with Article 58 of the General Data Protection Regulation.

(47) According to point d) of Article 58 (2) of the General Data Protection Regulation, the Authority instructs the data controller or processor to bring their data processing operations into compliance with the provisions of the General Data Protection Regulation—if applicable, in a specified manner and within a specified time frame.

(48) Based on point i) of Article 58 (2) of the General Data Protection Regulation, the Authority imposes an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph.

(49) According to Article 83 (1) of the General Data Protection Regulation, all supervisory authorities ensure that administrative fines imposed under this article for violations mentioned in paragraphs (4), (5), and (6) of this article are effective, proportionate, and dissuasive in every case.

(50) According to Article 83 (2) of the General Data Protection Regulation, administrative fines must be imposed in addition to or instead of the measures mentioned in points a)–h) and j) of Article 58 (2), depending on the circumstances of the case. In determining whether an administrative fine is necessary and in establishing the amount of the administrative fine, the following should be duly considered in each case:

(i) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing in question, as well as the number of data subjects affected by the infringement and the extent of the damage suffered by them;

(ii) the intentional or negligent nature of the infringement;

(iii) any measures taken by the data controller or processor to mitigate the damage suffered by data subjects;

(iv) the degree of responsibility of the data controller or processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32 of the General Data Protection Regulation;

(v) any relevant previous infringements committed by the data controller or processor;

(vi) the extent of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potentially negative effects of the infringement;

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(vii) the categories of personal data affected by the breach;

(viii) how the supervisory authority became aware of the breach, particularly whether the data controller or the data processor reported the breach, and if so, with what level of detail;

(ix) if any measures mentioned in Article 58(2) of the General Data Protection Regulation were previously ordered against the data controller or data processor in relation to the same subject matter, compliance with those measures;

(x) whether the data controller or data processor adhered to the approved codes of conduct under Article 40 of the General Data Protection Regulation or the approved certification mechanisms under Article 42 of the General Data Protection Regulation; and

(xi) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided as a direct or indirect consequence of the breach.

(51) In the absence of any provisions to the contrary in the General Data Protection Regulation, the provisions of the Administrative Procedure Act (Ákr.) shall apply to the data protection authority procedure initiated upon request, with the deviations defined in the Information Act (Infotv.).

(52) According to Section 106(1) of the Ákr., the Authority is obliged to take the necessary interim measure ex officio, regardless of its competence and jurisdiction, in the absence of which the delay would result in unavoidable damage, danger, or an unavoidable infringement of personal rights. The

Authority shall promptly notify the competent authority of the measures taken.

(53) According to Section 106(2) of the Ákr., the Authority shall communicate its decision regarding the interim measure taken ex officio to the client and the competent authority, which shall review the necessity of the interim measure and take action if necessary.

III.

Decision

1. Subject of the Procedure

(54) Based on the specific request, the Authority examined whether the handling of the second Facebook Messenger subscription request message sent to the Applicant after the first negative response was carried out with an appropriate legal basis and information. The Applicant stated, based on Section 76 of the Ákr., that in their opinion, the first message was already inadequate at the conclusion of the fact-finding process; however, they did not submit a new specific request regarding this, so the Authority examined it ex officio rather than as part of the request.

(55) In uncovering the circumstances of the data processing, the Authority also clarified what the general data processing practice related to the message sent to the Applicant was and whether this (uniformly set, thus in some cases exceptionally not modifiable) practice was applied in the case of the Applicant as well. There is no possibility of submitting a request by the data subject within the general practice; the Authority made findings in this regard based on the ex officio observation that occurred during the applicant procedure.

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(56) The data processing examined took place at the Applicant with similar settings between February 2022 and April 2022, within the framework of a political campaign.

(57) The contact and Facebook technical identifier (ID) personal data are not considered sensitive, and the subject of the procedure is not their general processing, but rather a narrower data processing related to automated Facebook Messenger messages sent in response to comments, which did not directly target special categories of personal data. However, the Facebook page operates specifically for purposes closely related to the handling of political opinions, and the Facebook Messenger subscription is closely associated with this, thus the data processing related to it also indirectly involves the handling of political opinions. The data protection risk associated with data processing related to political opinions is generally greater than that of data processing without this element.

2. The identity of the data controllers

(58) The Authority established during the clarification of the facts that the Facebook page and the associated Facebook Messenger account operate in the name of the Respondent. Although the Respondent stated on August 26, 2022, following multiple requests from the Authority, that as a private individual, they are not the data controller of the Facebook page, it is clear from the explicit political nature of the Facebook page and the Respondent's actions as a candidate for political office that the Respondent acted not as a private individual but as a political public figure, and that the Facebook page operated with their knowledge and cooperation, in their interest; no contrary circumstances arose. On the Facebook page and Facebook Messenger, the Respondent clearly acted in their own name—not as the Obligor or another representative—under their own photograph and name, and the formulation of the messages was also in the first person. Therefore, their involvement in the data processing—despite its lesser degree—is indisputable; without them, the data processing in question would not exist in this form.

(59) According to Article 4(7) of the General Data Protection Regulation, it is not necessarily the case that the data controller is the one who possesses the personal data, but rather the one who determines the essential conditions, purposes, and means of the data processing. The Facebook Messenger data processing complained of by the Applicant and examined by the Authority, as well as the data processing of the Facebook page inextricably linked to it and the information found there, are clearly determined by the Obligor for the purpose and interest of the Respondent, based on the established facts, in agreement with the Respondent. For the same reason, the circumstance interpreted oppositely by the Obligor and the Applicant, regarding whether the Obligor processed the Applicant's

personal data in connection with sending Facebook Messenger messages, is not relevant, since possession of the specific data is not equivalent to substantive decision-making authority regarding data processing; the Obligor can still have the status of a data controller without possessing the specific data. In many cases, data processing occurs solely through data processors, such that the data controller does not physically handle the personal data; this alone does not exclude the status and responsibility of the data controller as a general rule.

(60) The Respondent and the Obligor referred to the fact that according to the data processing information of the Facebook service (as well as existing judicial practice), Meta Ireland may, in certain cases, be a joint data controller with the person operating the Facebook page and the associated Facebook Messenger account. The Authority emphasizes in this regard that, according to the information cited in point (8)(iii) above, in "most cases," thus not always, Meta Ireland is not a data controller in connection with these data processing activities. Furthermore, the European Union

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The Court's decision C-210/16 highlights in paragraph 43 that "Moreover, it should be clarified that – as noted in paragraphs 75 and 76 of the Advocate General's opinion – the existence of joint responsibility does not necessarily imply the same level of responsibility for the various actors involved in personal data processing. On the contrary, since these actors may participate in different stages of data processing and to varying degrees, the extent of their responsibility must be assessed taking into account all relevant circumstances specific to the present case."

(61) The Authority did not examine the data processing activities of the Facebook Messenger service in general or the Facebook page, but specifically the particular data processing activity that is the automatic sending of Facebook Messenger messages in the case of commenting on the Facebook page. This is not enabled by default and can only be turned on or off at the discretion of the Controller; Meta Ireland only provides the technical framework for this, and processes the personal data of the commenter based on the instructions indicated by the Controller in the settings, under the conditions specified by the Controller (e.g., the existence and duration of a "silence period"). The activities of Meta Ireland related to the examined automatic consent-requesting message are similar to those of traditional telecommunications service providers, which typically do not qualify as data controllers in this context. Data processing activities carried out solely on the instructions of a third party qualify as data processing under Article 4(8) and Article 28(3)(a) of the General Data Protection Regulation, not as data controller activities. In light of the above points discussed in III.2, the Authority, considering all the circumstances of the case and the violations revealed below, concluded that with respect to the narrower data processing activity affected by the specific data protection violations, Meta Ireland did not make a substantive decision, and thus there are no specific circumstances that would justify initiating cross-border proceedings before the competent Irish data protection authority; the Authority has jurisdiction over the Applicant and the Controller, and thus acted accordingly. The assessment of the data processing behavior and decisions of the Applicant and the Controller is possible independently of Meta Ireland.

(62) In light of the above, the Authority determined in the operative part that regarding the data processing activities examined in this case, the data controller decisions leading to the violation should be regarded as jointly made by the Applicant and the Controller under Article 4(7) of the General Data Protection Regulation. The decisions related to the examined data processing were made in the interest and intent of the Applicant to increase the voter base of the Applicant as a political public figure, in which the Controller, as a supporting political organization, had an interest and practically participated to a greater extent in shaping the decision. The Authority took this into account when assessing the legal consequences. The fact that Meta Ireland, as a data processor, created and operates the automatic messaging function activated for commenting on Facebook Messenger does not exclude the possibility that the Applicant sees the subscription-requesting message in their own account, but the Applicant and the Controller do not, thus the Authority did not conduct counter-evidence regarding the Controller's statement in response to the call under Section 76 of the Act, that the Applicant's Facebook identifiers were not processed in relation to the automatic messaging and that they do not see the specific automatic messages with a negative response, as this did not affect the data controller status as explained in this III.2 point. Since, as explained in the above

points (11), (i), (iv), (vi), (14)(i), (20), and (21), the sending of the second message was caused not by a technical error, contrary to previous statements made by the Controller, but by the administrator settings of the Facebook page, there is no need for a technical error.

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Regarding the substantive evidence proceedings, as well as the extent of the data controller's liability of the Respondent and the Obligor concerning the second message, it is otherwise identical to the first message. Based on the disclosed documents and statements (see point (8)(xi)), Datadat GmbH participated only as a data processor in the data processing, and did not make any data controller decisions.

(63) Joint data processing does not necessarily require the Respondent and the Obligor to make a specific decision at the same time and place; it is sufficient if their collaboration, conducted with regard to each other and in an inseparable manner, can be established in terms of the objectives and means of the decisions resulting in data processing, as is the case here. The specific data processing could not have occurred without either the Respondent or the Obligor; it could not have been realized with only one of them. This does not affect the responsibility of the joint data controllers to establish a written agreement in accordance with Article 26(1) of the General Data Protection Regulation, however, the lack of a formal agreement – as well as the lack of communication of the essential conditions of their cooperation to the data subjects under Article 26(2) of the General Data Protection Regulation – does not in itself result in exemption from data controller liability. Since the Respondent and the Obligor did not fulfill the above obligations regarding the written recording of the conditions of joint data processing, the Authority established the infringement of the above articles according to the operative part.

3. The Highlighted Importance of Information Related to Data Processing

(64) According to Article 12(1) of the General Data Protection Regulation, the data controller is obliged to take appropriate measures to ensure that all information regarding the processing of personal data mentioned in Articles 13 and 14, as well as every piece of information under Articles 15–22 and 34, is provided to the data subjects in a concise, transparent, intelligible, and easily accessible form, clearly and in plain language.

(65) The system of appropriate information in the General Data Protection Regulation serves to ensure that the data subject is aware of which personal data will be processed, by which data controller, for what purpose, and how. This is essential for the data subject to be in a position to effectively exercise their rights and to be aware if a data controller intends to process their personal data for purposes that do not align with the data subject's wishes.

(66) In connection with the processing of potentially significant numbers of personal data of data subjects for political purposes, conducted by multiple contributors (Respondent, Obligor, Datadat GmbH), a risk exceeding the usual level arises. Therefore, heightened informational expectations apply. In the absence of appropriate information, it is evident that the data subject is not in a position to adequately exercise their rights.

(67) In the case of data processing based on Article 6(1)(a) of the General Data Protection Regulation, according to Article 4(11) of the General Data Protection Regulation, the data controller is obliged to provide information that allows for informed consent not only before the commencement of data processing but also before obtaining consent.

(68) Regarding the legal basis of data subject consent under the General Data Protection Regulation, it is important to emphasize that consent to data processing can only be valid if it is requested for specific purpose(s) – which can be specified separately for each purpose – and if appropriate information is provided beforehand, placing the data subject in a position where...

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to make an appropriate decision regarding the granting of consent, and complies with all other validity requirements set forth in the General Data Protection Regulation. Article 12(1) of the General Data Protection Regulation explicitly imposes an obligation on the data controller, meaning that it must provide assistance to the data subject so that they can exercise all their rights in an informed manner.

(69) The obligation to provide information, as elaborated above, does not merely represent a

"paperwork" obligation under the General Data Protection Regulation. Both the recitals and the articles of the General Data Protection Regulation prescribe the achievement of results when determining the obligations of the data controller, not just the demonstration of a certain minimal effort on the part of the data controller by sending an informative follow-up. The purpose of the information is to place the data subject in a position where they can make informed decisions regarding the exercise of their rights. If this is not objectively achieved for the average data subjects, then it will not comply with the General Data Protection Regulation.

4. Data processing related to the first Facebook Messenger message requesting subscription sent to the Applicant

(70) Regarding the first Facebook Messenger message requesting subscription sent to the Applicant, it is not a general function affecting all accounts of the Facebook service, as explained in points (11), (i), (iv), (vi), (14)(i), (20), and (21) above. The activation of Facebook Messenger messaging triggered by comments, as well as the setting of its content and conditions, including repetition, falls within the interest and responsibility of the Respondent and the Obligor, as outlined in section III.2 above, rather than Meta Ireland. This determined the purpose and existence of the related data processing and the substantive characteristics of the tool (under what conditions it will be repeated, with what information).

(71) The Authority did not find the Applicant's statement in response to the call under Section 76 of the Act logical – that automatic messaging would not be a built-in function of the Facebook service because they had not encountered it yet. The fact that not all of Facebook's billions of web pages use this function, and that the Applicant has not yet encountered it, does not refute the availability of the function on the platform, nor does it support the claim that this would be a unique development on the part of the Obligor. A general analysis of the Facebook service is not the subject of this procedure and cannot be, however, regarding the specific data processing activity under examination, based on publicly available documentation, the Authority established the following facts:

(i) Sending recurring messages (the subscription) is only possible with explicit consent, and the relevant document (so-called "Developer Policy", source: <https://developers.facebook.com/devpolicy>) point 2.b explicitly states that spamming is prohibited, meaning, for example, in this case, attempts to contact at very frequent intervals. The above documentation does not define specific numbers, and in this case, it concerns two messages, so this alone likely does not violate Facebook's own policies; however, in matters of non-compliance with its own policies, Meta Ireland is entitled to act, which is not the subject of this procedure, as the Authority examines compliance with data protection laws.

3 <https://developers.facebook.com/docs/messenger-platform/send-messages/recurring-notifications/>
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(ii) When a data controller seeks to obtain consent for further communication, it is a prerequisite that the user performs an interaction on the site that triggers the sending of a consent request according to the settings provided by the data controller, for example, in this case, writing a comment on some content on the Facebook page. On behalf of the data controller (in this case, the Applicant and the Obligor), the system sends an API Request, i.e., a request for data transmission, to the given user. As a result, a pop-up message appears on the user's device, which does not appear to the data controller. If the user approves the request, the system sends the user's so-called PSID as part of the technical response message to the data controller, which is one of the user identifiers used by the Facebook service among several identifiers. This corresponds to the declaration of the Obligor under point (9)(iii), thus the Authority accepted this as a fact.

(72) The Authority does not share the Applicant's view that an attempt to contact within the framework of the Facebook service would only be possible with prior consent. The fundamental function of social media platforms – such as Facebook – is to enable contact and communication. The service can also be used if the data subject objects to it among the general settings. This is not consent but rather the general exercise or non-exercise of objection, analogous to the fact that under electronic communications legislation, one can prohibit appearing in public online directories or indicate that they do not wish to receive calls for certain purposes (e.g., marketing, research). For this to qualify as consent as stated by the Obligor in point (8)(v), prior information is lacking, and there is no individual

specification and revocability concerning the specific (purpose-specific, conducted by a specific data controller) data processing. However, this does not exclude the possibility of contacting data subjects who do not exercise the above general objection for contact purposes on one occasion. In such cases, it is necessary to provide counter-evidence for the legitimate interest specifically within the framework of social media platforms. A similar attempt to contact is made through the displayed advertisements, which are also not directly displayed to the data subject by the advertiser but by the platform provider; however, the contact is initiated by the advertiser, without which it would not occur. Therefore, the general unlawfulness of the first (not repeated many times within a short period) message cannot be established solely due to the lack of consent concerning either the Applicant or other data subjects. (73) However, regarding the above data processing, the party that can primarily determine the content of the contact must ensure the appropriate data processing information, in accordance with Article 14 of the General Data Protection Regulation (since the data subject does not directly provide the data to the Obligor and the Applicant for the contact, the data is processed by the Meta Ireland data processor based on instructions given by the Obligor with administrative settings without the active involvement of the data subject to send the message requesting consent from the Obligor and the Applicant). As stated in points (8)(viii), (x), (9)(iv), (11)(i), and (18) above, the reference to the information was set up so that it only appears to subscribers after subscribing, not at the end of the text requesting subscription. Thus, those who do not subscribe do not receive information about the role of the Obligor and other information under Article 14(1) and (2) of the General Data Protection Regulation. This provision violates Article 12(1) and Article 14(1) and (2) of the General Data Protection Regulation, as the Applicant and the Obligor – evaluated in the section on legal consequences with varying degrees of involvement – did not ensure the appropriate information for the data subjects and the proper enforceability of their rights.

5. Data processing related to the second Facebook Messenger message requesting subscription sent to the Applicant.

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(74) The content of the second message and its triggering conditions are identical to those of the first message, thus the provisions described in section III.4 regarding the notification are equally applicable to the second message concerning related legal violations.

(75) The Obligor – for example, in points (8)(vi) and (9)(vii) – emphasized multiple times during the proceedings that the subsequent request for re-subscription with identical content following the Applicant's first negative response was the result of a technical error arising on the Facebook service page. The Authority reached a contrary conclusion based on the statements indicated in points (11)(iv), (v), and (vi). The second message was sent because the administrator interface of the Facebook page was set to have no "silence period," meaning that any comments made on Facebook pages during the period from February 2022 to April 2022 would generate further messaging regardless of the previous objection statement. According to the Obligor's statement, this was justified by a legitimate interest – which actually pertains to the interest of the Applicant as a public figure appearing on the Facebook page – however, this interest was merely asserted and not adequately substantiated.

(76) The documents sent by the Obligor do not indicate that the rights of the affected individuals were considered in any capacity, nor that their actual interests were genuinely weighed against this; on the contrary, based on the Obligor's statements presented in points 11(iv) and (vi), they explicitly disregarded them. The exercise of one fundamental right – for example, in this case, commenting on a political website as an exercise of the right to freedom of expression, often as an expression of disagreement with the website operator – cannot serve as a justification for automatically depriving the individual of another fundamental right – the right to object to data processing through further subscription requests under Article 21(1) of the General Data Protection Regulation – without any possibility of review. Therefore, the logic presented by the Obligor is erroneous, as it could result in a chilling effect on the expression of opinions by linking the affected individual's comment to the loss of rights under the General Data Protection Regulation due to the Obligor's unilateral decision. Consequently, the outcome of weighing the legitimate interest can only be that the political interest

sought is not a proportionate and necessary restriction; it cannot override the rights of every individual expressing opinions online. Since Article 21(1) of the General Data Protection Regulation explicitly allows for the rejection of objections only through case-by-case assessment based on legitimate interest, and due to the "silence period" setting and the Obligor's own statement under point 11(vi), the data controller did not intend to conduct this assessment, thus the automatic rejection setting would render the reference to legitimate interest unlawful in cases of messages requesting re-subscription following the first negative response, regardless of the aforementioned.

(77) In light of the above, the Authority determined, according to the operative part, that there was a violation of Article 6(1) and Article 21(1) of the General Data Protection Regulation concerning the data processing related to the second Facebook Messenger message requesting re-subscription, which was sent without considering the right to object and without a valid legal basis following the first message requesting re-subscription.

6. Officially Examined Practice

(78) The Authority, based on the established facts, officially noted that due to the uniform application of the settings options, not only the Applicant but also every individual commenting on the Facebook page, including those who had not subscribed to Facebook Messenger news, suffered the same legal violation during the data processing period (February 2022 – April 2022). Therefore, regarding the messages sent to the Applicant, the Authority took the following actions.

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Findings and violations are appropriately applicable to the general practice concerning the part where the data subject did not subscribe as a result of the message.

(79) According to the statement of the Obligor under point (9)(v), approximately 5,000 data subjects subscribed to the automatic message on Facebook Messenger news, which was not a popular solution for visitors to the Facebook page, logically indicating that significantly more inquiries led to this number of subscribers. The Obligor was unable to provide exact numbers regarding the data subjects despite the opposing claim made in response to the Applicant's request under Section 76 of the Act and the obligation under Article 5(2) of the General Data Protection Regulation. However, based on the above number and information, it can be established that there was a significant number of data subjects, and knowing more precise figures is not relevant for determining legal consequences, thus no further evidence was necessary.

(80) In addition to the identified violations concerning data processing related to the Applicant, based on the facts indicated in sections III.3. and III.4., it can be established under the same legal assessment that there was a violation of Article 12(1) and Article 13(1) and (2) of the General Data Protection Regulation concerning subscribers who responded positively to the request, as the subscribers only received a reference to data processing information after subscribing, which informed them whose data processing they consented to and under what conditions their personal data would be handled. In this context, Article 13 of the General Data Protection Regulation is applicable, contrary to the first message requesting consent, since for data subjects who voluntarily provided their personal data and responded affirmatively to the subscription, the source of the personal data is directly the data subject. Considering the operational mode of social media, and that they had the opportunity to unsubscribe at any time with the push of a button and did not do so, the Authority determined, after weighing all circumstances of the case, that the legal basis for the data processing of the subscribing data subjects was not affected by this violation in this specific case, as they actively requested news on a specific topic, and they should have been aware of the connection between the Applicant and the Obligor as common knowledge. However, this does not exempt the data controller from the obligation to provide specific information under the General Data Protection Regulation regarding who participates in the data processing and in what exact role and conditions; the fact that the Obligor is one of the supporters of the Applicant's political campaign does not clearly define how the data processing is conducted. The details of the data processing could not have been known to the data subjects at the time of giving their subscription consent, as they only received data processing information after subscribing, and according to the facts established in point I.2., the Applicant appeared on the Facebook page not on behalf of the Obligor, but in their own individual capacity as a

political public figure, which did not clarify to the data subjects the role of the Obligor in the data processing (and its exact conditions) concerning the Facebook page – and the related Facebook Messenger service sending messages in the first person singular as stated by the Applicant.

7. Rejection of the request for interim measures

(81) The Applicant also requested in the application that the Authority prohibit the data controller of the Facebook page from further unlawful data processing through the Facebook page as an interim measure during the current proceedings.

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(82) According to Section 106 (1) of the Administrative Procedure Act (Ákr.), the Authority decides on the ordering of temporary measures ex officio, not upon request, thus the Applicant's request of this nature cannot be fulfilled.

(83) The Applicant did not specify in the request what specific unavoidable damage, danger, or unavoidable infringement of personal rights would result from the delay, and the Authority did not find such a situation ex officio based on the request. The fact that affected individuals receive a subscription message does not constitute such severe irreversible damage that would justify the application of an exceptional measure. During the clarification of the facts, it also became clear that the contested data processing only lasted until April 2022, thus currently there is no necessity to prohibit an ongoing data processing.

(84) According to Section 112 (2) of the Administrative Procedure Act (Ákr.), there is no independent legal remedy against the decision on temporary measures; a legal remedy request can only be submitted within the framework of a remedy against the decision.

IV. Legal Consequences

1. Obligation to comply with the General Data Protection Regulation

(85) Since the setting leading to the examined data processing is no longer applied after April 2022, the obligation to terminate the unlawful state is unnecessary.

(86) For future data processing, the Authority has instructed the Applicant and the Obligor ex officio to take this decision into account based on Article 58 (2) (d) of the General Data Protection Regulation.

2. Necessity of a fine concerning the Applicant

(87) According to Article 58 (2) (i) and Article 83 (2) of the General Data Protection Regulation, the Authority may impose a data protection fine instead of or in addition to other measures.

(88) Regarding whether the imposition of a data protection fine is justified, the Authority decided in the exercise of its statutory discretion, taking into account Article 61 (1) (a) of the Information Act (Infotv.), Article 75/A of the Infotv., as well as Article 83 (2) and Article 58 (2) of the General Data Protection Regulation. Based on the Authority's assessment, the reprimand is proportionate and serves as a deterrent sanction concerning the Applicant's involvement in data processing-related violations, therefore the imposition of a fine is not necessary in the case of the Applicant.

3. Necessity and amount of the fine concerning the Obligor

(89) The imposition of a fine serves both specific and general prevention, which, in the Authority's view, makes it more likely to avoid similar cases than without imposing a fine. Furthermore, for the sake of general prevention, the decision will also be published on the Authority's website.

(90) According to the most recent 2021 data available based on point (9)(vi), the net revenue from the Obligor's sales was 142,738,000 HUF.

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(91) When determining the amount of the fine, the Authority first identified that the established violations are governed by Article 83 (5) (a) and (b) of the General Data Protection Regulation, according to which the maximum fine that can be imposed in the present case is 20,000,000 EUR.

(92) Since the established violations are closely related and arose together within the framework of one activity, the Authority examined them as a whole; in addition to the individual violations against the

Applicant, the Authority also took into account ex officio that the examined activity was part of general practice.

(93) The Authority identified the following aggravating circumstances concerning the Obligor:

(i) The processing of a significant number of personal data of affected individuals was carried out in a severely unlawful manner, violating several fundamental provisions of the General Data Protection Regulation (Article 83 (2) (a)).

(ii) The Obligor, as the predominant data controller determining the data processing, did not act appropriately (Article 83 (2) (d)).

(iii) Data processing related to political opinions poses a greater risk to the affected individuals (Article 83 (2) (g)).

(iv) The decision by the Obligor to forgo the use of the "silence period," based on evidently erroneous assumptions as per point (9)(v), demonstrates a severe degree of negligence in the planning of the data processing (Article 83 (2) (k)).

(94) The Authority identified the following mitigating circumstances concerning the data processing of the Obligor examined in this procedure:

(i) The specific data processing activity affected by the violation was conducted for a short period, during the campaign period related to the 2022 elections (Article 83 (2) (a)).

(ii) There was no express intent to commit a violation based on the documents and information used during the procedure concerning the Obligor; there was a severely negligent misinterpretation of the laws (Article 83 (2) (b)).

(iii) The Authority has not previously established a relevant data protection violation against the Obligor in a data protection authority case (Article 83 (2) (e)).

(iv) The current procedure has prolonged beyond the statutory procedural deadline due to its technical complexity (Article 83 (2) (k)).

V. Other Issues

(95) Considering that – due to the technical complexity of the case – the Authority has exceeded the processing deadline, based on point b) of Section 51 (1) of the Administrative Procedure Act (Ákr.), the Applicant is entitled to 10,000,

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- HUF 10,000 (ten thousand forints) shall be paid, at the recipient's choice, via bank transfer or postal money order.

(96) According to Section 38 (2) of the Infotv., the Authority is responsible for monitoring and facilitating the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and for promoting the free flow of personal data within the European Union. According to Section 38 (2a) of the Infotv., the tasks and powers assigned to the supervisory authority under the General Data Protection Regulation shall be exercised by the Authority in accordance with the provisions of the General Data Protection Regulation and this law concerning entities under the jurisdiction of Hungary. The Authority's jurisdiction extends to the entire territory of Hungary.

(97) Based on Section 112 (1), Section 114 (1), and Section 116 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

* * *

(98) The rules of administrative litigation are determined by Act I of 2017 on the Code of Administrative Court Procedure (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and pursuant to Section 13 (3) a) aa) of the Kp., the Budapest Metropolitan Court is exclusively competent for the case. According to Section 27 (1) of the Kp., legal representation is mandatory in administrative litigation before the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(99) According to Section 29 (1) of the Kp. and in consideration of this, Section 604 of Act CXXX of 2016 on the Code of Civil Procedure is applicable, and according to Section 9 (1) b) of Act CCXXII of

2015 on the General Rules of Electronic Administration and Trust Services, the client's legal representative is obliged to maintain electronic communication. The time and place for the submission of the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp.

(100) The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the advance payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

(101) If the Obligor does not properly prove the fulfillment of the prescribed fine payment obligation, the Authority shall consider that the obligation has not been fulfilled within the deadline. According to Section 132 of the Ákr., if the Obligor has not complied with the obligation stated in the Authority's final decision, it shall be enforceable. The Authority's decision becomes final upon communication according to Section 82 (1) of the Ákr. According to Section 133 of the Ákr., enforcement shall be ordered by the Authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 of the Ákr., enforcement shall be carried out by the state tax authority, unless otherwise provided by law, government decree, or a local government regulation in a municipal authority matter.

Dated: Budapest, according to the electronic signature

Dr. Attila Péterfalvi
President
Professor Emeritus